

**UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH DAKOTA
WESTERN DIVISION**

UNITED STATES OF AMERICA, Plaintiff, vs. ABDUL WAHEED MOHAMMED, Defendant.	24-CR-50165-CCT-2 FINAL INSTRUCTIONS TO THE JURY
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VERDICT FORM

FINAL INSTRUCTION NO. 1 – INTRODUCTION

Members of the jury, the written instructions I gave you at the beginning of the trial and the oral instructions I gave you during the trial remain in effect. I now give you some additional instructions.

The instructions I am about to give you, as well as the preliminary instructions given to you at the beginning of the trial, are in writing and will be available to you in the jury room. *All* instructions, whenever given and whether in writing or not, must be followed. This is true even though some of the instructions I gave you at the beginning of the trial are not repeated here.

FINAL INSTRUCTION NO. 2 – CONSPIRACY TO COMMIT WIRE FRAUD

For you to find Abdul Waheed Mohammed guilty of the offense of conspiracy to commit wire fraud as charged in Count 1 of the Indictment, the government must prove the following essential elements beyond a reasonable doubt:

One, that on or before September 1, 2023, and continuing through September 30, 2023, two or more persons reached an agreement or came to an understanding to commit wire fraud;

The Indictment charges a conspiracy to commit wire fraud for the purpose of fraudulently obtaining money and property from others. For you to find that the government has proved a conspiracy, you must unanimously find that there was an agreement to act for this purpose.

The agreement between two or more people to commit the crime of wire fraud does not need to be a formal agreement or be in writing. A verbal or oral understanding can be sufficient to establish an agreement.

It does not matter whether the crime of wire fraud was actually committed or whether the alleged participants in agreement actually succeeded in accomplishing their unlawful plan.

The agreement may last a long time or a short time. The members of an agreement do not have to all join it at the same time. You may find that someone joined the agreement even if you find that person did not know all of the details of the agreement.

A person may be a member of the agreement even if the person does not know all of the other members or the person agreed to play only a minor part in the agreement.

Two, Abdul Waheed Mohammed voluntarily and intentionally joined the agreement, either at the time it was first reached or at some later time while it was still in effect;

If you have determined that two or more people reached an agreement to commit wire fraud, you must next decide whether Abdul Waheed Mohammed voluntarily and intentionally joined that

agreement, either at the time it was first formed or at some later time while it was still in effect.

Earlier, in deciding whether two or more people reached an agreement to commit the crime of wire fraud, you could consider the acts and statements of each person alleged to be part of the agreement. Now, in deciding whether Abdul Waheed Mohammed joined the agreement, you may consider only his acts and statements.

A person joins an agreement to commit wire fraud by voluntarily and intentionally participating in the unlawful plan with the intent to further the crime of wire fraud. It is not necessary for you to find that Abdul Waheed Mohammed knew all of the details of the unlawful plan.

It is not necessary for you to find that Abdul Waheed Mohammed reached an agreement with every person you determine was a participant in the agreement.

To help you decide whether Abdul Waheed Mohammed agreed to commit the crime of wire fraud, you should consider the elements of that crime, which are set out in Final Instruction No. 3 below.

You may consider these elements in determining whether Abdul Waheed Mohammed agreed to commit the crime of wire fraud, keeping in mind that this count of the Indictment only charges a conspiracy to commit wire fraud and does not charge that wire fraud was committed.

And three, at the time Abdul Waheed Mohammed joined in the agreement, he knew the purpose of the agreement.

A person knows the purpose of the agreement if he is aware of the agreement and does not participate in it through ignorance, mistake, carelessness, negligence, or accident. It is seldom, if ever, possible to determine directly what was in the defendant's mind. Thus, Abdul Waheed Mohammed's knowledge of the agreement and its purpose can be proved like anything else, from reasonable conclusions drawn from the evidence.

It is not enough that Abdul Waheed Mohammed and other alleged participants in the agreement to commit the crime of wire fraud simply met, discussed matters of common interest, acted in similar ways, or perhaps helped one another. Abdul Waheed Mohammed must have known of the existence and purpose of the agreement.

Without such knowledge, Abdul Waheed Mohammed cannot be guilty of conspiracy, even if his acts furthered the conspiracy.

For you to find Mr. Mohammed guilty of the offense charged in Count 1 of the Indictment, the government must prove all three of the essential elements beyond a reasonable doubt. Otherwise, you must find Mr. Mohammed not guilty of the offense charged in Count 1 of the Indictment.

FINAL INSTRUCTION NO. 3 – WIRE FRAUD

For you to find Abdul Waheed Mohammed guilty of the offense of wire fraud as charged in Count 2 of the Indictment, the government must prove the following essential elements beyond a reasonable doubt:

One, Abdul Waheed Mohammed voluntarily and intentionally devised or attempted to devise a scheme to defraud another out of money or gold, or attempted to devise a scheme to obtain money or gold from another by means of material false representations or promises, which scheme is described as follows: Abdul Waheed Mohammed and Shaline Vyas communicated and networked together through electronic communications via cellular phone messaging applications to obtain money and property from others, including cash and gold from S.K. by falsely and fraudulently convincing S.K. that she was accused of money laundering and would be arrested if she did not provide the money and gold;

A person may be found guilty of an attempt if he intended to commit wire fraud and voluntarily and intentionally carried out some act which was a substantial step toward engaging in committing wire fraud.

A substantial step must be something more than mere preparation yet may be less than the last act necessary before the actual commission of the substantive offense. In order for behavior to be punishable as an attempt, it need not be incompatible with innocence, yet it must be necessary to the consummation of the crime and be of such a nature that a reasonable observer, viewing it in context, would conclude beyond a reasonable doubt that it was undertaken in accordance with a design to commit the substantive offense.

This count of the Indictment alleges two theories of wire fraud: that Abdul Waheed Mohammed, working with others, devised a scheme to defraud another out of money or that Abdul Waheed Mohammed, working with others, devised a scheme to obtain money from another by means of material false representations and promises. You need not find both theories are proven. Instead, you must unanimously agree that the government proved at least one of the

theories beyond a reasonable doubt. You must unanimously agree on the same theory in order to find Abdul Waheed Mohammed guilty of wire fraud as charged in this count. If you are unable to agree unanimously on the same theory, you must find Abdul Waheed Mohammed not guilty on this count.

The phrase “scheme to defraud” includes any plan or course of action intended to deceive or cheat another out of money or property by employing material falsehoods, concealing material facts, or omitting material facts. It also means the obtaining of money or property from another by means of materially false representations or promises. A scheme to defraud need not be fraudulent on its face but must include some sort of fraudulent misrepresentation or promise reasonably calculated to deceive a reasonable person.

A statement or representation is “false” when it is untrue when made or effectively conceals or omits a material fact.

A fact, falsehood, representation, or promise is “material” if it has a natural tendency to influence, or is capable of influencing, the decision of a reasonable person in deciding whether to engage or not to engage in a particular transaction. However, whether a fact, falsehood, representation, or promise is “material” does not depend on whether the person was actually deceived.

Two, Abdul Waheed Mohammed did so with the intent to defraud;

To act with “intent to defraud” means to act knowingly and with the intent to deceive someone for the purpose of causing some financial loss or loss of property to another or bringing about financial gain to oneself or another to the detriment of a third party.

And three, Abdul Waheed Mohammed used, or caused to be used, an interstate wire communication, that is, electronic wire communications between himself and Shaline Vyas about where to pick up cash or gold from S.K. and the progress he was making, in furtherance of, or in an attempt to carry out, some essential step in the scheme.

It is not necessary that Abdul Waheed Mohammed contemplated the use of an interstate wire communication, that he actually used a wire communication, or that he specifically intended the wire communication be used. It is sufficient if an interstate wire communication was in fact used to carry out the scheme and that it was reasonably foreseeable someone would use a wire communication.

It is not necessary that the government prove that the interstate wire communication was an essential part of the scheme. The wire communication may be routine or sent for a legitimate purpose so long as it assists in carrying out the fraud.

Each separate use of an interstate wire communication in furtherance of the scheme to defraud constitutes a separate offense. The action charged is as follows: electronic communications via cellular phone messaging applications between Shalinee Vyas and Abdul Waheed Mohammed regarding obtaining fraudulent proceeds, including conversations on how to obtain \$95,000 in gold from S.K.

For you to find Mr. Mohammed guilty of the offense charged in Count 2 of the Indictment, the government must prove all three elements' beyond a reasonable doubt. Otherwise, you must find Mr. Mohammed not guilty of the offense charged in Count 2 of the Indictment.

FINAL INSTRUCTION NO. 4 – GOOD FAITH

One of the issues in this case is whether Abdul Waheed Mohammed acted in good faith. Good faith is a complete defense to the crimes of conspiracy to commit wire fraud and wire fraud if Abdul Waheed Mohammed did not act with the intent to defraud or with the intent to obtain money or property by means of false or fraudulent pretenses, representations, or promises, which is an element of the charges. The essence of the good faith defense is that one who acts with honest intentions cannot be convicted of a crime requiring fraudulent intent.

Good faith includes, among other things, an opinion or belief that is honestly held, even if the opinion is in error or the belief is mistaken. However, even though a defendant honestly held a certain opinion or belief (such as a belief that a business venture would ultimately succeed, that investors would make a profit, or that investors would not lose money), a defendant does not act in good faith if he also knowingly made false or fraudulent representations or promises, or otherwise acted with the intent to defraud or deceive another. Proof of fraudulent intent requires more than proof that a defendant only made a mistake in judgment or management, or was careless.

The government has the burden of proving beyond a reasonable doubt that Abdul Waheed Mohammed acted with the intent to defraud. Evidence that Abdul Waheed Mohammed acted in good faith may be considered by you, together with all the other evidence, in determining whether or not Abdul Waheed Mohammed acted with the intent to defraud or the intent to obtain money or property by means of false or fraudulent pretenses, representations, or promises.

FINAL INSTRUCTION NO. 5 – KNOWLEDGE AND INTENT

Intent or knowledge may be proved like anything else. You may consider any statements made and acts done by the defendant and all the facts and circumstances in evidence which may aid in a determination of the defendant's knowledge or intent.

You may, but are not required to, infer that a person intends the natural and probable consequence of acts knowingly done or knowingly omitted.

FINAL INSTRUCTION NO. 6 – DELIBERATE IGNORANCE OR WILLFUL
BLINDNESS

You may find the defendant acted knowingly if you find beyond a reasonable doubt that the defendant believed there was a high probability that the money or money retrievals were fraudulent and that he took deliberate actions to avoid learning of that fact. Knowledge may be inferred if the defendant deliberately closed his eyes to what would otherwise have been obvious to him. A willfully blind defendant is one who takes deliberate actions to avoid confirming a high probability of wrongdoing and who can almost be said to have actually known the critical facts. You may not find the defendant acted “knowingly” if you find he was merely negligent, careless, or mistaken that the money or money retrievals he made were fraudulent.

FINAL INSTRUCTION NO. 7 – IMPEACHMENT

In Preliminary Instruction No. 7, I instructed you generally on the credibility of witnesses. I now give you this further instruction on how the credibility of a witness can be “impeached” and how you may treat certain evidence.

A witness may be discredited or impeached by contradictory evidence; by a showing that the witness testified falsely concerning a material matter; or by evidence that at some other time the witness has said or done something, or has failed to say or do something, that is inconsistent with the witness’s present testimony. If earlier statements of a witness were admitted into evidence, they were not admitted to prove that the contents of those statements are true. Instead, you may consider those earlier statements only to determine whether you think they are consistent or inconsistent with the trial testimony of the witness and, therefore, whether they affect the credibility of that witness.

If you believe that a witness has been discredited or impeached, it is your exclusive right to give that witness’s testimony whatever weight, if any, you think it deserves.

Your decision on the facts of this case should not be determined by the number of witnesses testifying for or against a party. You should consider all the facts and circumstances in evidence to determine which of the witnesses you choose to believe or not believe. You may find that the testimony of a smaller number of witnesses on one side is more credible than the testimony of a greater number of witnesses on the other side.

FINAL INSTRUCTION NO. 8 – PRESUMPTION OF INNOCENCE AND BURDEN
OF PROOF

The presumption of innocence means that the defendant is presumed to be absolutely not guilty.

- This presumption means that you must put aside all suspicion that might arise from the defendant's arrest, the charge, or the fact that he is here in court.
- This presumption remains with the defendant throughout the trial.
- This presumption is enough, alone, for you to find the defendant not guilty, unless the government proves, beyond a reasonable doubt, all of the elements of the offense charged against him.

The burden is always on the government to prove guilt beyond a reasonable doubt.

- This burden never, ever shifts to the defendant to prove his innocence.
- This burden means that the defendant does not have to call any witnesses, produce any evidence, cross-examine the government's witnesses, or testify.
- This burden means that, if the defendant does not testify, you must not consider that fact in any way, or even discuss it, in arriving at your verdict.

This burden means that you must find the defendant not guilty of the offense charged against him, unless the government proves beyond a reasonable doubt that he has committed each and every element of that offense.

FINAL INSTRUCTION NO. 9 – REASONABLE DOUBT

A reasonable doubt is a doubt based upon reason and common sense, and not doubt based on speculation.

- A reasonable doubt may arise from careful and impartial consideration of all the evidence, or from a lack of evidence.
- A reasonable doubt may arise from evidence produced by the government or the defendant, keeping in mind that the defendant never, ever has the burden or duty to call any witnesses or to produce any evidence.

The government must prove the defendant's guilt beyond a reasonable doubt.

- Proof beyond a reasonable doubt requires careful and impartial consideration of all the evidence in the case before making a decision.
- Proof beyond a reasonable doubt is proof that leaves you firmly convinced of the defendant's guilt.
- Proof beyond a reasonable doubt is proof so convincing that you would be willing to rely and act on it in the most important of your own affairs.

The government's burden is heavy, but it does not require proof beyond all possible doubt.

FINAL INSTRUCTION NO. 10 – DUTY TO DELIBERATE

A verdict must represent the careful and impartial judgment of each of you. Before you make that judgment, you must consult with one another and try to reach agreement if you can do so consistent with your individual judgment.

- If you are convinced that the government has not proved beyond a reasonable doubt that the defendant is guilty, say so.
- If you are convinced that the government has proved beyond a reasonable doubt that the defendant is guilty, say so.
- Do not give up your honest beliefs just because others think differently or because you simply want to be finished with the case.
- On the other hand, do not hesitate to re-examine your own views and to change your opinion if you are convinced that it is wrong.
- It is your duty, as jurors, to discuss this case with one another in the jury room. You should try to reach agreement if you can do so without violence to individual judgment, because a verdict—whether guilty or not guilty—must be unanimous.
- You can only reach a unanimous verdict if you discuss your views openly and frankly, with proper regard for the opinions of others, and with a willingness to re-examine your own views.
- Remember that you are not advocates, but judges of the facts, so your sole interest is to seek the truth from the evidence.
- The question is never who wins or loses the case, because society always wins, whatever your verdict, when you return a just verdict based solely on the evidence, reason, your common sense, and these Instructions.
- You must consider all the evidence bearing on each element before you.
- Take all the time that you feel is necessary.

Remember that this case is important to the parties and to the fair administration of justice, so do not be in a hurry to reach a verdict just to be finished with the case.

FINAL INSTRUCTION NO. 11 – DUTY DURING DELIBERATIONS

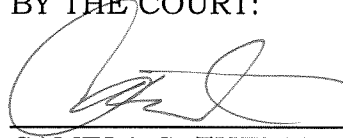
You must follow certain rules while conducting your deliberations and returning your verdict:

- Select a foreperson to preside over your discussions and to speak for you here in court.
- Do not consider punishment in any way in deciding whether the defendant is guilty or not guilty. If the defendant is guilty, I will decide what the sentence should be.
- Communicate with me by sending me a note through a Court Security Officer (CSO). The note must be signed by one or more of you. Remember that you should not tell anyone, including me, how your votes stand. I will respond as soon as possible, either in writing or orally in open court.
- Base your verdict solely on the evidence, reason, your common sense, and all Instructions, whether written or not. Again, nothing I have said or done was intended to suggest what your verdict should be—that is entirely for you to decide.
- Reach your verdict without discrimination. In reaching your verdict, you must not consider the defendant's race, color, religious beliefs, national origin, or sex. You are not to return a verdict for or against the defendant unless you would return the same verdict without regard to his race, color, religious beliefs, national origin, or sex.
- Complete the Verdict Form. The foreperson must bring the signed verdict form to the courtroom when it is time to announce your verdict.
- When you have reached a verdict, the foreperson will advise the CSO that you are ready to return to the courtroom.

Good luck with your deliberations.

Dated October 16th, 2025.

BY THE COURT:

A handwritten signature in black ink, appearing to read 'Camela C. Theeler', written over a horizontal line.

CAMELA C. THEELER
UNITED STATES DISTRICT JUDGE